

TENTATIVE RULING

Case: **JPMorgan Chase Bank, N.A. v. Silva**
Case No. CV2025-0957

Hearing Date: **June 23, 2026** **Department Thirteen** **9:00 a.m.**

Plaintiff JPMorgan Chase Bank, N.A.'s unopposed motion for summary adjudication is **GRANTED**. (Code Civ. Proc., § 437c, subd. (p)(1).) Plaintiff has established all required elements of its second cause of action (breach of guaranty) against defendant Edgar Silva. (*Ibid.*; *Walsh v. West Valley Mission Community College Dist.* (1998) 66 Cal.App.4th 1532, 1546-47; UMF 1-18.)

Plaintiff's request for costs is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 1032, 1033.5.) A prevailing party must file and serve the memorandum of costs within 15 days after the date of service of the notice of entry of judgment. (Cal. Rules of Court, rule 3.1700(a)(1).) As judgment has not yet been entered, plaintiff's request for costs is premature.

The case management conference set for July 7, 2026, is **VACATED**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rule of Court 3.1312, or further notice is required.

TENTATIVE RULING

Case: **Malik v. Flagstar Bank, N.A.**
 Case No. CV2025-0929

Hearing Date: **June 23, 2026** **Department Thirteen** **9:00 a.m.**

Plaintiff's motion to file second amended complaint

Plaintiff Nadir Malik's motion to file second amended complaint is **GRANTED**. (Code Civ. Proc., § 473, subd. (a)(1); Cal. Rules of Court, rule 3.1324.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Defendant's motion for judgment on the pleadings

Defendant Flagstar Bank, N.A.'s motion for judgment on the pleadings is **DROPPED FROM CALENDAR AS MOOT**. (Code Civ. Proc., § 438; *State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131, [the filing of an amended complaint moots a motion directed to a prior complaint because there is but one complaint in a civil action].)